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Antigua and Barbuda

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The United Nations Educational, Scientific and Cultural Organization (UNESCO) recommended that Antigua and Barbuda ratify the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights and the Convention against Discrimination in Education.[2]

3. According to the United Nations country team, Antigua and Barbuda had acknowledged the need to establish a specialized unit dedicated to the collection of human rights data and the preparation of periodic reports to international mechanisms, recognizing that weaknesses in data management had affected compliance with reporting obligations.[3]

4. The United Nations country team reported that Antigua and Barbuda had not issued a standing invitation for special procedures, despite repeated recommendations.[4]

III. National human rights framework

1. Constitutional and legislative framework

5. The United Nations country team reported that the Constitution of Antigua and Barbuda prohibited discrimination on the grounds of race, sex or creed.[5]

6. UNESCO recommended that Antigua and Barbuda consider enshrining the right to education in the Constitution.[6]

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2. Institutional infrastructure and policy measures

7. The United Nations country team reported that Antigua and Barbuda did not have a national human rights institution compliant with the principles relating to the status of national institutions for the promotion and protection of human rights (the Paris Principles).[7]

8. According to the United Nations country team, the Government had reported ongoing gender mainstreaming efforts across public policy planning, including integration of gender perspectives into national development strategies. Nevertheless, it had been noted in the national report prepared for the thirtieth anniversary of the Beijing Declaration and Platform for Action in Latin America and the Caribbean that there was a need for stronger monitoring mechanisms and improved gender-disaggregated data to fully assess progress towards substantive equality.[8]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

9. The United Nations country team reported that women in Antigua and Barbuda benefited from constitutional guarantees of equality before the law; however, domestic legislation did not contain a comprehensive statutory definition of discrimination against women.[9]

2. Right to life, liberty and security of person, and freedom from torture

10. The United Nations country team reported that the death penalty remained legal under domestic law in Antigua and Barbuda for certain criminal offences, although it had not been carried out in decades. Government statements in recent international human rights forums indicated a preference for limiting the use of the death penalty, citing constitutional and procedural safeguards, and a de facto moratorium on executions, although no formal legislative abolition had been enacted.[10]

11. According to the United Nations country team, conditions of detention in Antigua and Barbuda continued to raise concerns regarding overcrowding, inadequate infrastructure, sanitation and access to medical care, particularly at Her Majesty's Prison. Reports indicated that the main facility had exceeded its capacity, leading to degrading conditions for inmates. Prisoners experienced delays in access to legal counsel, limited visiting hours and issues with timely access to medical care. To mitigate that situation, the Government was constructing a remand facility using container-based infrastructure to expand capacity. As an exceptional measure during the coronavirus disease (COVID-19) pandemic, judges had been encouraged to apply sentence reductions of up to two years in certain cases to reduce prison overcrowding.[11]

12. The United Nations country team reported that the Juvenile Justice Act (2015), amended in 2017 and 2018, reformed the treatment of children in conflict with the law. The Act established that minors should not be detained with adults and prohibited life imprisonment sentences for children. It also prohibited corporal punishment as a judicial sentence under juvenile justice legislation.[12]

13. The United Nations country team also reported that Antigua and Barbuda had enacted the Suppression of Torture Act of 1993, criminalizing torture and incorporating elements of the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, while prohibiting torture and inhuman or degrading treatment. Courts applied the "fruit of the poisonous tree" doctrine and the Judges' Rules of 1967 to exclude evidence and confessions obtained through torture. However, there was no explicit statutory provision declaring such evidence inadmissible, as that relied on judicial doctrines and common law.[13]

14. UNESCO reported that the Education Act of 2008 allowed for the use of corporal punishment in schools (article 50 (2)).[14] It recommended legally proscribing corporal punishment in education settings.[15]

3. Administration of justice, including impunity, and the rule of law

15. The United Nations country team reported that judicial delays remained a serious concern. Criminal proceedings might take several years to conclude, and in some cases pretrial detention had been extended for up to five years. A 2018 referendum to adopt the Caribbean Court of Justice as the final appellate court had been unsuccessful. The Judicial Committee of the Privy Council of the United Kingdom of Great Britain and Northern Ireland remained the country's final court of appeal.[16]

16. According to the United Nations country team, the Government had announced plans to renovate the former parliament building in 2026 to establish a specialized family court, separating family matters from magistrates' courts to enhance privacy and specialization in sensitive cases.[17]

17. The United Nations country team reported that the Government had indicated that there were plans to introduce legislation in the first quarter of 2026 to establish the Forensic Services of Antigua and Barbuda, including laboratories for drug analysis and biological testing, aimed at strengthening investigative capacity and due process.[18]

4. Fundamental freedoms and the right to participate in public and political life

18. UNESCO reported that, although criminal defamation had been abolished in Antigua and Barbuda in 2015 through the adoption of the Defamation Act 2015, under the Sedition and Undesirable Publications Act of 1938, seditious libel was a criminal offence punishable by a maximum of two years in prison with or without hard labour and a maximum fine of $5,000. The Act also criminalized the possession of seditious publications, upon first offence, with imprisonment for up to one year or a fine of $3,000. UNESCO recommended decriminalizing defamation and placing it within civil defamation legislation in accordance with international standards.[19]

19. UNESCO encouraged Antigua and Barbuda to assess the system of supervision of the broadcasting sector in order to ensure that the process was transparent and independent. It also encouraged Antigua and Barbuda to amend access-to-information legislation in accordance with international standards, in particular by establishing an independent oversight institution with the capacity to implement such legislation. UNESCO further encouraged Antigua and Barbuda to ensure a transparency and accountability mechanism in the governance of digital platforms to ensure that human rights were upheld and that the risks associated with the spread of harmful content online were mitigated.[20]

20. The United Nations country team reported that women's political representation had shown measurable progress. According to recent international data, women held a significant proportion of local government positions and female participation in public life had increased compared to previous decades. However, parity at the national parliamentary level had not yet been achieved: currently, only 1 out of 17 seats was held by a woman (down from 2 before the 2023 elections).[21]

5. Prohibition of all forms of slavery, including trafficking in persons

21. According to the United Nations country team,while the Government of Antigua and Barbuda did not fully meet the minimum standards for the elimination of trafficking in persons, it was making significant efforts to do so.[22]

22. The United Nations country team observed that the Government of Antigua and Barbuda had enacted the Trafficking in Persons (Prevention) Act (2010), which criminalized all forms of trafficking in persons, prescribed significant penalties for offenders and established measures for victim protection, including protection orders, shelter, medical care and legal assistance. The State had strengthened its legal framework with amendments adopted in 2015 and 2019 that increased fines, enhanced penalties and reinforced administrative and institutional mechanisms for implementation.[23]

23. The United Nations country team reported that, under the Trafficking in Persons (Prevention) Act, the Trafficking in Persons Prevention Committee was the national coordinating mechanism responsible for implementing anti-trafficking policies. It included representatives from law enforcement, immigration, customs, gender affairs, social services, labour and civil society, all working together to formulate prevention strategies and victim-protection programmes.[24]

24. The United Nations country team reported that regional cooperation remained a key part of the approach of Antigua and Barbuda and that the country participated in Caribbean anti-trafficking initiatives.[25]

6. Right to work and to just and favourable conditions of work

25. UNESCO reported that the Labour Code of Antigua and Barbuda set the minimum age of employment at 14 years of age (sects. E2 and E3). It recommended raising the minimum age of employment to at least 15 years, in accordance with international human rights law.[26]

26. According to the United Nations country team, national reporting highlighted persistent gender stereotypes and structural barriers affecting women's full and equal participation in economic and public life. Women remained concentrated in certain sectors of employment, particularly services and tourism, which increased vulnerability to external economic shocks.[27]

7. Right to social security

27. The United Nations country team reported that the National Social Protection Act (2020) had been adopted to provide a legislative framework for social assistance and poverty-reduction measures, consolidating support mechanisms for vulnerable populations, including low-income families, older persons and persons with disabilities.[28]

8. Right to health

28. The United Nations country team reported that Antigua and Barbuda operated a medical benefits scheme, which covered 11 common diseases and provided financial assistance for medical treatment. The Government had announced that the scheme would be transformed into a national health insurance scheme in 2026, with the objective of expanding the coverage of diseases and making benefits transferable within the Caribbean Community.[29]

29. The United Nations country team also reported that abortion remained criminalized in Antigua and Barbuda under the Offences Against the Person Act, except in limited circumstances where the continuation of pregnancy posed a risk to the life of the pregnant woman.[30]

9. Right to education

30. UNESCO reported that the Education Act of 2008 only provided for a limited protection of the right to education as it was subject to available resources (art. 14). It recommended guaranteeing in the legislation at least 12 years of free primary and secondary education and introducing legislation to make pre-primary education free and compulsory for at least one year.[31]

31. The United Nations country team reported that the Government had committed to expanding access to tertiary education and technical training, including scholarship programmes and subsidized opportunities at institutions such as Antigua State College and the University of the West Indies (Five Islands Campus). The COVID-19 pandemic had significantly disrupted in-person schooling, requiring temporary school closures and remote learning arrangements. Authorities had implemented digital learning measures; however, disparities in access to devices and connectivity were reported.[32]

32. UNESCO recommended that Antigua and Barbuda improve the public accessibility of education laws, policies and data to enable effective monitoring of the implementation of the right to education.[33]

33. UNESCO also recommended that Antigua and Barbuda increase efforts to finance education by allocating at least 4%–6% of gross domestic product to education and/or at least 15%–20% of public expenditure to education, in accordance with international benchmarks.[34]

10. Cultural rights

34. As a State Party to the Convention for the Protection of the World Cultural and Natural Heritage, the Convention for the Safeguarding of the Intangible Cultural Heritage and the Convention on the Protection and Promotion of the Diversity of Cultural Expressions, Antigua and Barbuda was encouraged by UNESCO to fully implement the relevant provisions that promoted access to and participation in cultural heritage and creative expressions and, as such, were conducive to implementing the right to take part in cultural life as defined in article 27 of the Universal Declaration of Human Rights and article 15 of the International Covenant on Economic, Social and Cultural Rights. In doing so, Antigua and Barbuda was also encouraged to facilitate the participation of communities, practitioners, cultural actors and civil society organizations, as well as representatives of vulnerable groups (minorities, migrants, refugees, youth, Indigenous Peoples and persons with disabilities), and to ensure that equal opportunities were given to women and girls to address gender disparities.[35]

11. Development, the environment, and business and human rights

35. According to the United Nations country team, in recent years, Antigua and Barbuda had pursued economic diversification initiatives, including the expansion of air connectivity through the relaunch of Liat airlines and the promotion of foreign investment in infrastructure and hospitality projects. Those initiatives were aimed at strengthening employment opportunities and reducing economic vulnerability to external shocks. The Government had also promoted a model described as “empowerment capitalism”, under which shares in certain State-related enterprises, including the West Indies Oil Company, were offered to citizens to broaden domestic wealth ownership.[36]

36. The United Nations country team reported that the legal framework in Antigua and Barbuda addressing corruption included provisions under the Integrity in Public Life Act, which required public officials to declare assets and liabilities and established oversight mechanisms to monitor compliance. In recent years, the Government had reported efforts to strengthen the functioning of the Integrity Commission, including renewed enforcement of asset declaration requirements for persons in public life. According to the World Justice Project Rule of Law Index 2025, Antigua and Barbuda ranked thirty-eighth globally and second in the Caribbean, reflecting comparatively strong performance in areas including constraints on government powers and absence of corruption and areas requiring continued institutional strengthening.[37]

37. According to the United Nations country team, Antigua and Barbuda recognized climate change as an existential threat to small island developing States, with direct implications for the enjoyment of human rights, including the rights to life, housing, health, water and development.[38]

38. The United Nations country team reported that, in May 2024, the International Tribunal for the Law of the Sea had issued an advisory opinion affirming that greenhouse gas emissions constituted marine pollution under the United Nations Convention on the Law of the Sea. Antigua and Barbuda had played a leading role in initiating those proceedings through the Commission of Small Island States on Climate Change and International Law.[39]

39. The United Nations country team also reported that Antigua and Barbuda had committed to achieving net-zero greenhouse gas emissions by 2050 and, in 2018, had been the first country in the Caribbean to ban single-use plastics, demonstrating alignment between environmental policy and sustainable development objectives.[40]

40. The United Nations country team further reported that Antigua and Barbuda had continued to pursue renewable energy expansion, including solar parks and wind turbines, with the objective of becoming the first “green island” in the English-speaking Caribbean.[41]

41. According to the United Nations country team, despite the climate leadership of Antigua and Barbuda, concerns had been raised regarding the environmental and human rights impacts of major tourism and infrastructure projects in Barbuda.[42] Special procedure mandate holders stated that the fragile and biodiverse natural site of Palmetto Point, Barbuda, recognized as a wetland of international importance under the Convention on Wetlands of International Importance especially as Waterfowl Habitat, remained at risk, with serious human rights implications, due to the construction of the Barbuda Ocean Club resort. They called upon the Government and the project proponents to employ rights-based and nature-based solutions to address current challenges, including in conserving and restoring wetlands. They added that human rights standards should guide the approval and development of related projects in Barbuda, such as the current construction of an international airport.[43]

42. According to the United Nations country team, the repeal of the 2007 communal land law in Barbuda and the introduction of a new land tenure framework declaring that non-private lands belonged to the Crown and allowing residents to obtain individual land titles had generated tensions and concerns regarding the protection of collective and cultural land rights in the context of large-scale development.[44]

43. The United Nations country team reported that, in the digital sector, Antigua and Barbuda continued to expand broadband coverage and telecommunications services to improve access to online public services, education platforms and business operations. The Government had announced plans to install a national submarine cable in 2026 to reduce Internet costs and increase connection speed across the islands. That initiative aimed to strengthen digital sovereignty and address connectivity gaps that had become evident during remote learning during the COVID-19 pandemic.[45]

B. Rights of specific persons or groups

1. Women

44. The United Nations country team reported that Antigua and Barbuda had continued to strengthen its gender policy framework in recent years; however, structural gender inequalities persisted despite constitutional guarantees of equality before the law. National reporting in 2024 had acknowledged that gender disparities remained embedded in social norms, economic participation and decision-making structures.[46]

45. According to the United Nations country team, while the Directorate of Gender Affairs had submitted a National Strategic Action Plan to End Violence and Gender-Based Violence (2023–2027), the plan was never formally endorsed by the relevant national authorities. The plan outlined a comprehensive approach to prevention, response and awareness-raising on gender-based violence, with emphasis on stakeholder engagement, improved protection services for survivors, prevention strategies and capacity-building for service providers such as police officers, medical staff and social workers.[47]

46. Also according to the United Nations country team, the Domestic Violence Act of 2015 provided legal protections and penalties for domestic violence and outlined procedures for victims to obtain protection orders; however, domestic violence remained a persistent concern, requiring continued implementation and enforcement of the Act.[48]

47. The United Nations country team reported that the Directorate of Gender Affairs continued to operate the Support and Referral Centre**,** the first one-stop centre in the Caribbean providing medical, legal and psychosocial services for survivors of gender-based and sexual violence, including a 24-hour national hotline and temporary shelter services.[49]

48. The United Nations country team also reported that, with the support of the United Nations Entity for Gender Equality and the Empowerment of Women (UN-Women) and the United Nations Population Fund, the Government had launched community-based initiatives, such as a programme to prevent sexual violence during national celebrations and a 5-km walk to raise awareness of gender-based violence, as part of broader public awareness campaigns.[50]

49. According to the United Nations country team, despite institutional developments, marital rape was not fully criminalized in all circumstances under section 3 (1) of the Sexual Offences Act, except under limited exceptions.[51]

2. Children

50. According to the United Nations country team, Antigua and Barbuda had adopted the National Child Protection Policy (2021), which affirmed the best interest of the child as a guiding principle in child protection systems and outlined coordinated institutional responsibilities across relevant ministries and agencies.[52]

3. Persons with disabilities

51. According to the United Nations country team, the national legal framework governing disability rights was primarily set out in the Disability and Equal Opportunities Act (2017). The Act provided a statutory definition of disability consistent with a functional and social understanding of disability, covering physical, mental, intellectual and sensory impairments that might hinder full and effective participation in society on an equal basis with others. The national reporting of Antigua and Barbuda had highlighted efforts to align domestic policy with the principles of dignity, autonomy, participation and equality reflected in the Convention on the Rights of Persons with Disabilities, including awareness-raising and institutional coordination measures.[53]

4. Lesbian, gay, bisexual, transgender and intersex persons

52. According to the United Nations country team, consensual same-sex sexual relations between adults had been decriminalized following a judicial decision issued on 5 July 2022. The High Court of Justice had declared unconstitutional certain provisions of the Sexual Offences Act 1995 that criminalized “buggery” and acts of “serious indecency” between persons of the same sex. However, the relevant statutory provisions had not been formally repealed by legislative amendment, but rather rendered unenforceable through the Court’s declaration of unconstitutionality.[54]

Notes

1 A/HRC/49/15, A/HRC/49/15/Add.1 and A/HRC/49/2.
2 UNESCO submission for the universal periodic review of Antigua and Barbuda, paras. 18 (i) and 26 (vi). See also United Nations country team submission for the universal periodic review of Antigua and Barbuda, paras. 10 and 12.
3 United Nations country team submission, para. 17.
4 Ibid., para. 21.
5 Ibid., para. 34.
6 UNESCO submission, para. 18 (iii).
7 United Nations country team submission, para. 33.
8 Ibid., para. 64.
9 Ibid., para. 60.
10 Ibid., paras. 73 and 74.
11 Ibid., paras. 49–51.
12 Ibid., para. 31.
13 Ibid., para. 28.
14 UNESCO submission, para. 4. See also United Nations country team submission, para. 83.
15 UNESCO submission, para. 18 (vii).
16 United Nations country team submission, paras. 51 and 52.
17 Ibid., para. 29.
18 Ibid., para. 30.
19 UNESCO submission, paras. 10 and 20.
20 Ibid., paras. 19, 21 and 23.
21 United Nations country team submission, para. 62.
22 Ibid., para. 76.
23 Ibid., para. 77.
24 Ibid., para. 78.
25 Ibid., para. 79.

[26] UNESCO submission, paras. 5 and 18 (viii).
[27] United Nations country team submission, para. 63.
[28] Ibid., para. 53.
[29] Ibid., para. 55.
[30] Ibid., para. 88.
[31] Ibid., paras. 3 and 18 (v) and (vi).
[32] United Nations country team submission, paras. 58 and 59.
[33] UNESCO submission, para. 18 (ii).
[34] Ibid., para. 18 (ix).
[35] Ibid., para. 24.
[36] United Nations country team submission, paras. 91 and 92.
[37] Ibid., paras. 85–87.
[38] Ibid., para. 39.
[39] Ibid., para. 40.
[40] Ibid., para. 41.
[41] Ibid., para. 47.
[42] Ibid., para. 45.
[43] See https://www.ohchr.org/en/press-releases/2022/02/antigua-and-barbuda-luxury-resort-puts-wetland-and-healthy-environment-risk.
[44] United Nations country team submission, para. 46.
[45] Ibid., paras. 73 and 74.
[46] Ibid., para. 61.
[47] Ibid., para. 22.
[48] Ibid., para. 25.
[49] Ibid., para. 23.
[50] Ibid., para. 24.
[51] Ibid., para. 70.
[52] Ibid., para. 82.
[53] Ibid., paras. 71 and 72.
[54] Ibid., paras. 35 and 36.